

I. Request

1. The Ministry of Foreign Affairs, through the Directorate-General for Foreign Policy, requested the National Data Protection Commission (CNPd) to express its opinion on the draft Protocol that revises the Convention between the Portuguese Republic and the Republic of Mozambique to Avoid Double Taxation on Income and Prevent Tax Evasion, signed in Lisbon on March 21, 1991, as amended by the Protocol signed in Maputo on March 24, 2008 (hereinafter referred to as the "Protocol").
2. The CNPD issues this opinion within the scope of its powers and responsibilities as the national authority for the control of personal data processing, conferred by paragraph c) of paragraph 1 of Article 57 and by paragraph 4 of Article 36 of Regulation (EU) 2016/679, of April 27, 2016 – General Data Protection Regulation (GDPR), in conjunction with the provisions of Article 3, paragraph 2 of Article 4, and paragraph a) of paragraph 1 of Article 6, all of Law No. 58/2019, of August 8.
3. The CNPD had the opportunity to express its opinion through the issuance of its Opinion No. 2021/96, of July 13, regarding the draft Convention to Avoid Double Taxation to be concluded with the Republic of Mozambique, in which it recommended the introduction of some amendments.

II. Analysis

4. The Protocol in question contains an article entirely dedicated to data protection, which aims to regulate the processing of personal data of individuals that are subject to international data transfer for the purposes of the Convention for the elimination of double taxation on income and for the prevention of fraud and tax evasion. The Portuguese taxes covered by this Protocol are the Personal Income Tax (IRS), the Corporate Income Tax (IRC), and the surcharges.
5. Indeed, Article 26-A of the Protocol, under the heading "Personal Data Protection," establishes specific standards regarding the processing of personal data, which correspond in full to the wording that was the subject of Opinion/2024/5 of the CNPD, of March 5, 2024, through which the CNPD expressed its opinion on a request from the Ministry of Foreign Affairs for the CNPD to verify the adequacy to the GDPR of the text of the Conventions to avoid Double Taxation (CDT), which involve international data transfer.
6. Through the proposed text at that time, it was intended to establish a wording compliant with the GDPR that would provide the CDTs with the appropriate guarantees for the international transfer of personal data.
7. In that opinion, the CNPD considered that the model of data protection clauses to be included in the Conventions to eliminate Double Taxation, in its entirety and in the proposed terms, is in accordance with the provisions of the GDPR, as interpreted by the Court of Justice.
8. The CNPD also understood that the provisions contained therein offer adequate guarantees for the international transfer of personal data to third countries, as it ensures a level of protection for individuals that is essentially equivalent to that existing in the Union.
9. Now, the aforementioned clause is included in the Protocol now submitted for the CNPD's consideration, so that, although Mozambique does not enjoy an adequacy decision from the European Commission regarding its level of data protection, the current wording of Article 26-A of the Protocol presents the adequate guarantees, in the sense of Article 46 of the GDPR, for the transfer of data from Portugal to Mozambique and for the subsequent processing operations.
10. In this regard, the CNPD expresses its satisfaction with the use of this model of data protection clauses and understands that the present Protocol complies with the current Portuguese legal framework regarding data protection.

III. Conclusion

11. The CNPD considers that the Protocol to be concluded between Portugal and Mozambique, in the current wording of Article 26-A, whose provisions regulate the processing of personal data carried out under the Protocol that revises the Convention between the Portuguese Republic and the Republic of Mozambique to Avoid Double Taxation on Income and Prevent Tax Evasion, offers adequate

guarantees in the context of international data transfer to third countries, in accordance with the combined provisions of Articles 44 and 46 of the GDPR, and ensures a level of protection for individuals that is essentially equivalent to that existing in the Union.

Approved at the meeting of January 7, 2025

Paula Meira Lourenço (President)

Signed by: PAULA CRISTINA MEIRA LOURENÇO

Date: 2025.01.07 19:51:47+00'00'

Certified by: Diário da República

Certified attributes: President - National Data Protection Commission